

		There is no proof of service showing service of any of the moving papers on the client. In addition, the submitted proof of service shows that only the declaration was served, and only on the opposing party. (See ROA 188, 191.) Further, the notice of motion and motion provide that Sean Dowsing and Bayan Salehi move to be relieved as counsel of record, but only a declaration by Sean Dowsing has been submitted. Due to the defects above, the motion to be relieved as counsel of record is DENIED, without prejudice. Moving attorney to give notice.
105	Kowalczyk vs. Gracey 25-01471642	Motion to Appear Pro Hac Vice x 3 The unopposed applications of attorneys (1) Mitchell Schuster, (2) Stacey Ashby, and (3) Milton Otto of Meister Seelig & Fein PLLC to appear pro hac vice on behalf of Plaintiffs Edward Kowalczyk and The Fifth Veda, Inc. are GRANTED. Moving attorneys met the requirements of California Rules of Court, rule 9.40. Moving attorneys to give notice
106	Pacific Carpets, LLC vs. Panku, Inc. 22-01245791	Motion for Attorney Fees Defendants 2525 Main Apartment, LP (“2525 Main”); Panku, Inc.; ASD Capital Management, LP; and Assured Management, LLC (collectively, “Defendants”) move for an order granting them attorney fees in the amount of \$98,445.00 incurred in the appellate matters arising from the instant action against Plaintiff and Cross-Defendant Pacific Carpets, LLC pursuant to Civil Code section 1717.

	“In any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” (Civ. Code, § 1717(a).) Paragraph 28 of the subcontract agreement attached to Pacific Carpets, LLC’s Complaint is titled “Professional Fees” and provides, in relevant part: “Should any claim, action, arbitration or proceeding be commenced between the parties hereto or their representatives concerning any provision of this Subcontract or the Contract Documents or the rights and duties of any person or entity in relation thereto or arising from or relating to Subcontractor’s Work, the party prevailing in such litigation or arbitration, whether by out-of-court settlement or final judgment, shall be entitled in addition to such other relief as may be granted, to the actual sum as and for attorneys’ fees, accounting, expert and consulting fees, and court costs or arbitration fees incurred in such litigation or arbitration and any appeals in connection therewith (collectively ‘Professional Fees’).” For purposes of section 1717, the phrase “on a contract” is liberally construed and will apply “ ‘if (1) the action (or cause of action) “involves” an agreement, in the sense that the action (or cause of action) arises out of, is based upon, or relates to an agreement by seeking to define or interpret its terms or to determine or enforce a party’s rights or duties under the agreement, and (2) the agreement contains an attorney fees clause.’ ” (Westwood Homes, Inc. v. AGCPII Villa Salerno Member, LLC (2021) 65 Cal.App.5th 922, 927.) Pacific Carpets, LLC appealed this Court’s order granting Defendants summary judgment and order releasing the mechanic’s lien against the subject property. The Court of Appeal affirmed both orders and Pacific Carpets, LLC’s petitions for review with the California Supreme
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		Court, as both appeals were denied. For purposes of Civil Code section 1717, Defendants are the prevailing party. Pacific Carpets LLC sued all Defendants for breach of the subcontractor agreement. Because Defendants, even those who were nonsignatories, were sued on the subcontract as if they were parties to it, they are entitled to attorney fees. (Reynolds Metal Co. v. Alperson (1979) 25 Cal.3d 124, 128 [holding that nonsignatory defendants who prevailed in defense against claims based on promissory notes, which provided for recovery of attorney fees, were entitled to their fees since the plaintiff would have been entitled to recover if it had prevailed].) Pacific Carpets, LLC's claims arise out of the subcontract, as they all relate to Pacific Carpets, LLC's performance of services and seek payment for those services. Further, 2525 Main's crossclaim for disgorgement relates to payments made to Pacific Carpets, LLC for services provided under the subcontract. Thus, the Complaint and Cross-Complaint are actions "on a contract," and the requested attorney's fees incurred on appeal are recoverable under section 1717. Based on the Court's experience and knowledge of prevailing rates in the Orange County legal community, the Court finds the hourly rates charged by counsel, which range from \$400 to \$620, to be reasonable in light of counsel's experience and qualifications. Further, the Court finds that the 185 hours reflected in the lodestar is a reasonable number of hours to expend responding to two appeals. In light of the above, Defendants' Motion for Attorney Fees is GRANTED. Defendants to give notice.
107	Moreno vs. General Motors LLC	Motion for Attorney Fees

	24-01403942	Plaintiff Abel Loeza Moreno (“Plaintiff”) moves for an order granting Plaintiff attorney fees against defendant General Motors LLC (“Defendant”) in the total amount of \$31,527.15 plus an additional \$3,375.00 for Plaintiff’s counsel to review Defendant’s opposition, draft a reply brief, and attend the hearing on this Motion. Plaintiff also requests costs in the amount of \$1,652.13. To determine the appropriate fee award under Civil Code section 1794, the Court applies the lodestar method. Under the lodestar method, the base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48.) As to costs, Defendant states that it tendered payment in full in the amount of \$1,652.13 in costs. Therefore, the request for costs is denied as moot. As to the lodestar for attorney fees, Defendant argues that the number of hours expended by Plaintiff’s counsel on certain tasks is excessive. The Court agrees that certain entries reflect an excessive number of hours spent for the related tasks and that the hours should accordingly be reduced as follows: · Preparing Plaintiff’s discovery requests and notice of deposition: 2.8 hours to 1.5 hours (cutting \$559.00); · Review of discovery responses and preparation of meet and confer letter: 4.5 hours to 2.0 hours (cutting \$1,075.00); · Drafting motion to compel: 4.8 hours to 3.0 hours (cutting \$774.00); · Drafting fee motion: 5.7 hours to 4.0 hours (cutting \$765.00).
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